



U.S. Department
of Transportation

**Pipeline and Hazardous
Materials Safety
Administration**

November 05, 2024

1200 New Jersey Avenue, SE
Washington, DC 20590

DOT-SP 15240
(FOURTH REVISION)

EXPIRATION DATE: 2028-10-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: R & R Hunting & Outdoor Adventures, LLC
d.b.a. Hesperus Air Service
FAA Certificate number: H4AC702W (Part 135)
Anchorage, AK
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of certain flammable and combustible liquids in alternative packaging having a capacity of 119 gallons or more via motor vehicle and aboard 14 CFR Part 135 cargo aircraft within the State of Alaska when other means of transportation is not practicable. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
 - d. This special permit authorizes transportation of the materials listed in paragraph 6 (below) in aircraft of United States registry. It does not grant authority to use foreign controlled airspace or airports outside the United States.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.101 Hazardous Materials Table Column (9B) in that the maximum gross weight is exceeded and §§ 173.241 and 173.242 and § 175.310 in that alternative packaging is authorized.

Tracking Number: 2024094174

5. BASIS: This special permit is based on the application of R & R Hunting & Outdoor Adventures, LLC dated September 4, 2024, submitted in accordance with § 107.109.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Diesel fuel	3	NA1993	III
Fuel, aviation, turbine engine	3	UN1863	I
Gasoline	3	UN1203	II

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packaging prescribed is a non-DOT specification bladder type fuel tank constructed by Turtle-Pac LTD. The packaging has been designed, constructed and tested to U.S. MIL. SPEC. MIL-D-23119G, with a capacity of 160 U.S. gallons.

b. The tanks must be maintained and inspected in accordance with the manufacturer's recommendations.

- c. OPERATIONAL CONTROLS:

- 1) Transportation by cargo-only aircraft is only authorized in the State of Alaska where other means of transportation are impracticable.
- 2) Annual hazmat training must include spill response, loading, unloading, and handling of bulk fuel.
- 3) Training is required for handling tanks, hose setup, pump operation, and containment during the fuel transfer operation.
- 4) All tanks, hoses, and pumps must be certified for the fuel being transferred.

8. SPECIAL PROVISIONS:

- a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation. (Operator is both shipper and air operator.)
- b. **MARKING:** The packaging described in paragraph 7.a. above must be marked “DOT-SP 15240” in letters at least two inches high on a contrasting background as specified in §172.302(c).
- c. A person who is not a holder of this special permit who receives a package covered by this special permit may reoffer it for transportation provided no modification or change is made to the package and it is reoffered for transportation in conformance with this special permit and the HMR.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo only aircraft.

10. MODAL REQUIREMENTS:

- a. A current copy of this special permit must be carried aboard each aircraft or motor vehicle used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
- b. Authorized aircraft. Aircraft used under this special permit must be authorized as part of an FAA Part 135 Operating Certificate.
- c. This special permit does not waive any FAA airworthiness requirements or the need to obtain other required FAA authorizations.
- d. Authorized persons aboard aircraft. No person may be carried other than a required flight crewmember, an FAA inspector or person necessary for handling the hazardous materials in paragraph 6.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.

- o Registration required by § 107.601 et seq., when applicable.

Each “Hazmat employee”, as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—“The Hazardous Materials Safety and Security Reauthorization Act of 2005” (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term “exemption” to “special permit” and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, U.S. Department of Transportation, East Building PHH-13, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at <https://www.phmsa.dot.gov/approvals-and-permits/hazmat/special-permits-search>. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: Casey Chambers